

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble Sr., Department Advocate's Office, April 18, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-27795 against PO James Talbert Tax Registry No. 960014. The case was conferenced on April 9, 2024, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince who approved the negotiated penalty of a Schedule B Command Discipline with a forfeiture of TEN (10) vacation days for DADS No. 2023-27795 after accepting the finding(s) of substantiation of the allegations contained in the Charges and Specifications. Charges will be dismissed for plea purposes.

Andre D. Applewhite

Chief Prosecutor

New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-27795
BOOK & PAGE NO. Page <u>1</u> of <u>1</u>
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, TALBERT	FIRST JAMES	M.I. R	COMMAND 044 PRECINCT
SHIELD NO. 5961	TAX REGISTRY NO. 960014	SOCIAL SECURITY NO.	DATE APPOINTED 10/07/2015	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer James TALBERT, on or about September 16, 2021, at approximately 0050, while assigned to 044 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, abused their authority as a member of the New York City Police Department, in that PO TALBERT refused to provide their shield number to § 87(2)(b) without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer James TALBERT, on or about May 4, 2022, at approximately 1025, while assigned to 044 PCT, and on duty, in the vicinity of 100 Church Street, provided an inaccurate statement to the Civilian Complaint Review Board by stating that he did yell out their shield number to § 87(2)(b)	DISMISSED	

DC Burke
FIRST DEPUTY COMMISSIONER

6/7/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Cab
POLICE COMMISSIONER

7/18/24
DATE

THIRD ENDORSEMENT

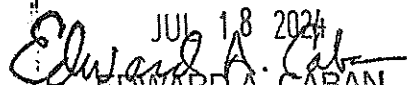
First Deputy Commissioner to Police Commissioner June 4, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-27795 against Police Officer James Talbert, Tax No. 960014, with the recommendation that Police Officer Talbert receive a Schedule "B" Command Discipline, with the forfeiture of ten (10) vacation days. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince, reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **FOR YOUR APPROVAL.**



Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED

JUL 18 2024

EDWARD A. CABAN
POLICE COMMISSIONER